



**Mathew Tyler**

550 Vallombrosa Ave # 6471

Chico, CA 95927

+1-262-757-8802

Job\_10\_20-22@FAKEGOV.COM

**Plaintiff, *Pro per pro se***

**Dated:** September 4, 2025

**UNITED STATES DISTRICT COURT**

**EASTERN DISTRICT OF CALIFORNIA**

**MATHEW TYLER,**

Plaintiff,

v.

**118TH US CONGRESS, et al.,**

Defendants.

Case No. 2:2025CV00404

**MOTION FOR RECONSIDERATION OF MAGISTRATE JUDGE ASSIGNMENT  
AND FOR DISTRICT JUDGE REASSIGNMENT DUE TO JUDICIAL INACTION  
AND FEDERAL DISCRIMINATION VIOLATIONS**

1   **EXECUTIVE SUMMARY**

2   This motion seeks reconsideration of magistrate judge assignment due to systematic  
3   judicial inaction violating constitutional due process, federal disability discrimination  
4   laws, and statutory limitations on magistrate authority. Two successive magistrate judges  
5   have failed to rule on any substantive matters despite explicit promises and escalating  
6   urgency, creating complete case paralysis in violation of federal law. With legislative and  
7   executive defendants, courts represent Plaintiff's sole constitutional remedy under  
8   separation of powers. The case involves pure questions of law ready for adjudication -  
9   defendants admit their actions but claim justification. Immediate district judge  
10   assignment is required to prevent continuing federal crimes and constitutional violations  
11   affecting fundamental rights including federal election participation, disability  
12   accommodation, and multiple converging constitutional protections requiring strict  
13   scrutiny.

---

14   **TO THE HONORABLE COURT:**

15   Plaintiff Mathew Tyler, an indigent layperson appearing pro per pro se, proceeding in  
16   forma pauperis, and a qualified individual with a disability as codified by 42 U.S.C. §  
17   12131(2), respectfully moves this Court pursuant to Federal Rules of Civil Procedure  
18   59(e), 60(b), and 72(a), 28 U.S.C. §§ 636(b)(1)(A)-(B), 636(c), 1915(d), and 2201, 5  
19   U.S.C. § 706(2)(D), E.D. Cal. L.R. 230, and this Court's inherent case management

1 authority for reconsideration of magistrate judge assignment and immediate reassignment  
2 to a district judge due to systematic judicial inaction constituting federal disability  
3 discrimination and criminal enabling.

4 **REQUEST FOR EXPEDITED CONSIDERATION:** Given ongoing constitutional  
5 violations and time-sensitive election-related claims, Plaintiff respectfully requests  
6 emergency processing and ruling within 14 days.

7 **REQUEST FOR ORAL ARGUMENT:** Plaintiff requests oral argument on these  
8 constitutional issues and procedural violations.

---

## 9 **I. JURISDICTION AND STANDING**

### 10 **A. Federal Question Jurisdiction**

11 This Court possesses jurisdiction under 28 U.S.C. § 1331 (federal question) and § 1343  
12 (civil rights jurisdiction) over systematic constitutional violations affecting Plaintiff's  
13 fundamental rights.

### 14 **B. Article III Standing**

15 Plaintiff has constitutional standing through concrete injury from systematic denial of  
16 disability accommodations, traceable to Defendants' conduct, redressable by judicial  
17 relief. *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560-61 (1992).

1 **C. Case or Controversy Requirement**

2 Active constitutional violations create live case or controversy requiring immediate  
3 Article III resolution under separation of powers framework.

4 **D. Declaratory Judgment Authority**

5 28 U.S.C. § 2201 provides authority for declaratory relief regarding constitutional  
6 violations and federal preemption issues.

7 **II. CHRONOLOGICAL TIMELINE OF JUDICIAL INACTION**

8 **Plaintiff has been denied direct and indirect access (through Court appointed**  
9 **counsel) to the online case to create an accurate chronological timeline of judicial**  
10 **inaction.**

11 **01/30/2025:** Case filed

12 **[Date]:** Emergency TRO filed - no ruling issued **[Date]:** Preliminary injunction requested

13 **[Date]:** Injunctive relief requested - no ruling issued **[Date]:** Summary judgment motion  
14 filed - no ruling issued

15 **May 2025:** First magistrate refuses to rule or recuse until this date. Ninth Circuit of  
16 Appeals took until first magistrate already recused then ruled Plaintiff's request for Writ  
17 of Mandamus was moot.

18 **[Date]:** Second magistrate assigned: Second magistrate rules that they will rule on **June**  
19 **18, 2025** - promise broken

1    **07/24/2025:** Motion for status

2    **09/04/2025:** Motion for Partial Summary Judgment filed - no response **Present:**

3    Complete judicial paralysis continues, constitutional violations multiply

4    **III. STANDARD OF REVIEW AND PROCEDURAL BASIS**

5    **A. Federal Rule 60(b)(6) - Extraordinary Circumstances**

6    Rule 60(b)(6) authorizes relief for "any other reason that justifies relief," including when  
7    judicial inaction prevents constitutional adjudication. *Klapprott v. United States*, 335 U.S.  
8    601, 614-15 (1949).

9    **B. Federal Rule 59(e) - Manifest Error**

10    Magistrate assignment despite explicit objection and subsequent complete inaction  
11    constitutes manifest procedural error requiring correction.

12    **C. Federal Rule 72(a) - Nondispositive vs. Dispositive Matters**

13    Complex constitutional claims involving injunctive relief and summary judgment  
14    constitute dispositive matters requiring district judge resolution under Rule 72(a) and 28  
15    U.S.C. § 636(b)(1)(B).

1 **D. Administrative Procedure Act Standard**

2 5 U.S.C. § 706(2)(D): Courts must "hold unlawful and set aside agency action...without  
3 observance of procedure required by law." Magistrate assignment violated required  
4 procedural safeguards.

5 **IV. ABSTENTION DOCTRINES INAPPLICABLE**

6 **A. Younger Abstention**

7 *Younger v. Harris*, 401 U.S. 37 (1971) does not apply - no ongoing state criminal  
8 proceedings requiring federal court abstention.

9 **B. Pullman Abstention**

10 *Railroad Comm'n of Texas v. Pullman Co.*, 312 U.S. 496 (1941) inapplicable - pure  
11 federal constitutional questions with no uncertain state law issues.

12 **C. Colorado River Abstention**

13 *Colorado River Water Conservation District v. United States*, 424 U.S. 800 (1976) does  
14 not apply - no parallel state proceedings addressing same federal issues.

15 **V. PLAINTIFF'S PROTECTED STATUS AND GOOD FAITH EFFORTS**

16 **Multiple Protected Classifications:** Plaintiff is an indigent layperson appearing pro per  
17 pro se, proceeding in forma pauperis, a qualified individual with disabilities under 42  
18 U.S.C. § 12131(2), and a crime victim under federal and state law.

1 **First-Time Litigant Status:** This represents Plaintiff's first federal lawsuit. As such,  
2 Plaintiff acknowledges ignorance of specialized procedural requirements or particular  
3 formulations that might expedite judicial resolution. If specific procedural mechanisms  
4 exist to compel adjudication of constitutional matters, Plaintiff respectfully requests the  
5 Court's guidance under the liberal construction standard.

6 **Constitutional Purpose of Judiciary:** While Plaintiff's approaches may be  
7 unconventional, they are based on Plaintiff's understanding that the fundamental purpose  
8 of the federal judiciary is to adjudicate constitutional controversies—precisely the  
9 systematic civil rights violations presented herein. Plaintiff seeks nothing beyond the  
10 Court's core constitutional function: judicial determination of constitutional claims.

11 **Source of Delay:** The delays in this constitutional case stem entirely from judicial  
12 inaction, not from any deficiency in Plaintiff's pleadings or failure to meet procedural  
13 requirements. Plaintiff has diligently sought judicial resolution through every available  
14 mechanism known to Plaintiff.

## 15 **VI. FACTUAL BASIS FOR RECONSIDERATION**

### 17 **A. Magistrate Judge Assignment Despite Explicit Objection**

18 **Subsequent Objection:** Plaintiff later filed explicit objection to magistrate judge  
19 assignment via court-provided consent form, seeking direct district judge assignment for  
20 these complex constitutional matters involving systematic civil rights violations.

1 **Assignment Despite Objection:** The Court nonetheless assigned this matter to  
2 magistrate judges without addressing Plaintiff's explicit objection marked on the official  
3 consent form or obtaining required consent under 28 U.S.C. § 636(c).

4 **Discriminatory Service Burden:** The first magistrate judge ruled that court process  
5 service via U.S. Marshals is appropriate for IFP Plaintiff under 28 U.S.C. § 1915(d), but  
6 simultaneously delayed ordering such service, indefinitely so far. This forced Plaintiff,  
7 despite IFP status and court approval for free service, to solely bear all costs to serve  
8 multiple defendants across jurisdictions - violating both § 1915(d) and ADA reasonable  
9 accommodation requirements.

10 **Additional Court Discrimination:** Despite Plaintiff's IFP status and **payment of \$405**  
11 **filing fee at the time of filing**, specifically to **avoid court-imposed delays**, the Court has  
12 refused to provide free access to electronic case filing system (PACER/CM-ECF),  
13 preventing equal access to case docket and filing records required for legal  
14 representation. This denial constitutes additional ADA Title II and Section 504  
15 discrimination in court services.

16 **B. Pattern of Systematic Judicial Inaction**

17 **First Magistrate Judge:** Refused to rule on any pending matters and refused to recuse  
18 until May 2025, creating months of complete judicial paralysis.

19 **Second Magistrate Judge:** Explicitly represented to the Court and parties that rulings  
20 would be issued in June 2025, yet failed to rule on any substantive matters beyond initial  
21 procedural orders, continuing the pattern of judicial inaction.



1    **Systematic Failure:** Two successive magistrate judges have failed to provide substantive  
2    adjudication on critical constitutional matters, including:

- 3        • Emergency Temporary Restraining Order
- 4        • Injunctive relief requests
- 5        • Summary judgment motions
- 6        • Case status inquiries
- 7        • Motion for Partial Summary Judgment (recently filed)

8    **Escalating Urgency Ignored:** Plaintiff has sought increasingly urgent forms of relief, yet  
9    magistrate judges continue to ignore substantive constitutional claims requiring  
10   immediate resolution.

11   **Broken Judicial Promises:** The current magistrate's failure to honor their own stated  
12   timeline for rulings violates fundamental case management principles and undermines  
13   judicial credibility in constitutional proceedings.

14   **C. Harmless Error Analysis - Actual Prejudice from Magistrate Assignment**

15   **Concrete Prejudice:** Magistrate assignment caused actual, not theoretical, harm through:

- 16        • Months of case paralysis preventing constitutional adjudication
- 17        • Escalating constitutional violations during delay periods
- 18        • Multiplying statutory damages under continuing violations doctrine
- 19        • Denial of emergency relief for time-sensitive election-related claims

1 **But-For Causation:** But for improper magistrate assignment, district judge would have  
2 addressed emergency constitutional violations immediately under established precedent.

3 **D. Ripeness and Mootness Analysis**

4 **Fully Ripe Controversy:** Constitutional violations are ongoing, concrete, and require  
5 immediate judicial resolution - no further factual development needed.

6 **Mootness Prevention:** *Moore v. Ogilvie*, 394 U.S. 814, 816 (1969): "Capable of  
7 repetition, yet evading review" doctrine prevents mootness for recurring election-related  
8 constitutional violations.

9 **E. Prejudice from Judicial Inaction**

10 **Judiciary as Sole Constitutional Remedy:** With both **legislative (118th US Congress)**  
11 and **executive branch defendants named**, the judicial branch represents **Plaintiff's sole**  
12 **avenue for constitutional relief under separation of powers. *Marbury v. Madison*, 5**  
13 **U.S. 137, 177 (1803): "It is emphatically the province and duty of the judicial**  
14 **department to say what the law is." When other branches violate constitutional**  
15 **rights, Article III courts possess exclusive authority and obligation to provide**  
16 **remedy.**

17 **Continuing Constitutional Violations:** Each day of delay perpetuates systematic civil  
18 rights violations affecting Plaintiff's fundamental rights. Each election cycle conducted  
19 under discriminatory requirements constitutes new constitutional injury under continuing  
20 violations doctrine.

1 **Mootness Prevention Urgency:** Under *Moore v. Ogilvie*, 394 U.S. 814, 816 (1969),  
2 election cases require prompt resolution under "capable of repetition, yet evading review"  
3 doctrine. The discriminatory barriers extend beyond presidential candidacy to all  
4 democratic participation requiring signature collection, creating systematic exclusion that  
5 recurs each election cycle.

6 **Escalating Damages:** *Heckler v. Chaney*, 470 U.S. 821, 832 (1985): "delay itself is often  
7 the equivalent of outright denial" of constitutional rights. Under *Klehr v. A.O. Smith*  
8 *Corp.*, 521 U.S. 179, 189 (1997), each election cycle under discriminatory requirements  
9 constitutes new predicate activity, indefinitely extending statute of limitations and  
10 exponentially multiplying constitutional injury and statutory damages.

11 **Ready for Adjudication:** Defendants do not dispute their actions or deny they occurred.  
12 Instead, they claim their systematic denial of disability accommodations was justified.  
13 This presents pure questions of law requiring judicial determination - precisely the  
14 constitutional adjudication function these delays prevent.

15 **Delay as Separate Constitutional Violation:** *Hayden v. Pataki*, 449 F.3d 305 (2d Cir.  
16 2006): Recognized that delay in adjudicating rights claims can constitute a separate  
17 constitutional violation independent of underlying merits.

18 **VII. FEDERAL COURT DISCRIMINATION UNDER DISABILITY RIGHTS**  
19 **LAWS**

1   **A. ADA Title II Coverage of Federal Courts**

2   **Federal Court as Public Entity:** 28 C.F.R. § 35.130(a): "No qualified individual with a  
3   disability shall, on the basis of disability, be excluded from participation in or be denied  
4   the benefits of the services, programs, or activities of a public entity." Federal courts  
5   constitute public entities subject to comprehensive ADA obligations.

6   **Court Accessibility Requirements:** *Galloway v. Superior Court of District of Columbia*,  
7   816 F. Supp. 12, 19 (D.D.C. 1993): Courts failing to provide individuals with disabilities  
8   information necessary to access court proceedings constitutes ADA discrimination,  
9   emphasizing "the courthouse door cannot be closed to any individual."

10   **Comprehensive Discrimination Prohibition:** 28 C.F.R. § 35.130(b) prohibits:

- 11       • (b)(1)(i) Denying participation or providing unequal treatment
- 12       • (b)(1)(iv) Utilizing criteria or methods with discriminatory effect
- 13       • (b)(2) Imposing eligibility criteria that screen out individuals with disabilities
- 14       • (b)(7) Failing to make reasonable modifications in policies, practices, or  
15       procedures
- 16       • (b)(8) Imposing differential charges for reasonable modifications

17   **Most Integrated Setting Requirement:** 28 C.F.R. § 35.130(d): Courts must provide  
18   services "in the most integrated setting appropriate" to individuals with disabilities.  
19   Indefinite magistrate delays deny equal access to judicial services.

1    **B. Section 504 Effective Communication Requirements**

2    **Federal Funding Trigger:** Federal courts receive federal funding, triggering Section 504  
3    obligations under 29 U.S.C. § 794.

4    **Effective Communication Mandate:** 28 C.F.R. § 35.160(a)(1): "A public entity shall  
5    take appropriate steps to ensure that communications with applicants, participants,  
6    members of the public, and companions with disabilities are as effective as  
7    communications with others."

8    **Court Communication Obligations:** *Popovich v. Cuyahoga County Court of Common*  
9    *Pleas*, 276 F.3d 808, 816 (6th Cir. 2002): Courts must provide effective communication  
10    to ensure equal access to court proceedings for individuals with disabilities.

11    **Auxiliary Aids and Services:** 28 C.F.R. § 35.160(b)(1): Courts must provide auxiliary  
12    aids and services for effective communication, including timely judicial responses to  
13    constitutional claims.

14    **C. Civil Rights Act Coverage**

15    **Equal Enjoyment Requirement:** 42 U.S.C. § 2000a(a): "All persons shall be entitled to  
16    the full and equal enjoyment of...accommodations...without discrimination or  
17    segregation." Court services constitute public accommodations requiring equal access.

18    **State Action Supporting Discrimination:** 42 U.S.C. § 2000a(d) defines discrimination  
19    as supported by state action when:

- 20        • (1) Carried on under color of law, statute, or regulation

- 1 • (2) Carried on under color of custom enforced by officials
- 2 • (3) Required by action of the state or political subdivision
- 3 Magistrate delays satisfy all three categories, establishing federal discrimination.

#### 4 **D. Disability-Based Discrimination Defined**

5 **Federal Framework:** Multiple overlapping protections prohibit the systematic judicial  
6 delays affecting Plaintiff:

- 7 • **42 U.S.C. § 12132:** "No qualified individual with a disability shall, by reason of  
8 such disability, be excluded from participation in or be denied the benefits of the  
9 services, programs, or activities of a public entity"
- 10 • **29 U.S.C. § 794:** Section 504 prohibits exclusion from federally funded programs  
11 "solely by reason of her or his disability"
- 12 • **42 U.S.C. § 2000d:** Prohibits exclusion from federally assisted programs based on  
13 protected status
- 14 • **28 C.F.R. § 35.130(a):** Comprehensive prohibition on disability-based exclusion  
15 from public entity services

### 16 **VIII. MAGISTRATE JUDGE AUTHORITY LIMITATIONS**

#### 17 **A. Statutory Limitations on Magistrate Authority**

18 **28 U.S.C. § 636(b)(1)(A):** Magistrates may hear pretrial matters "except a motion for  
19 injunctive relief." Plaintiff's emergency TRO and injunctive relief requests require district  
20 judge consideration.

1 **28 U.S.C. § 636(b)(1)(B):** Magistrates may only make "proposed findings and  
2 recommendations" on dispositive motions. Constitutional claims for summary judgment  
3 require district judge resolution.

4 **28 U.S.C. § 636(c):** Magistrate jurisdiction over dispositive matters requires written  
5 consent of all parties. Plaintiff explicitly objected, preventing magistrate authority.

6 **28 U.S.C. § 1915(d):** Courts have special duty to assist pro se IFP litigants, including  
7 proper case assignment and prompt adjudication.

## 8 **B. Constitutional Avoidance Doctrine**

9 **Complex Constitutional Questions:** *Ashwander v. TVA*, 297 U.S. 288, 347 (1936)  
10 (Brandeis, J., concurring): Complex constitutional issues should be resolved by Article III  
11 judges rather than delegated to magistrates with limited constitutional authority.

12 **Article III Judicial Power:** *Northern Pipeline Constr. Co. v. Marathon Pipe Line Co.*,  
13 458 U.S. 50 (1982): Article III judicial power extends only to "judicial Power of the  
14 United States," not administrative functions.

15 **Systematic Civil Rights Violations:** The scope and complexity of constitutional  
16 violations require authoritative district judge resolution, not magistrate recommendations  
17 subject to further delay.

1 **C. Federal Rule 72(a) Requirements**

2 **Dispositive vs. Nondispositive Classification:** Constitutional challenges to systematic  
3 government discrimination constitute dispositive matters requiring district judge authority  
4 under Rule 72(a).

5 **Emergency Relief Authority:** TRO and preliminary injunction requests fall within  
6 exclusive district judge authority, not magistrate jurisdiction.

7 **D. E.D. Cal. Local Rule 230 - Case Management Authority**

8 EDCA L.R. 230 establishes this Court's comprehensive case management authority to  
9 ensure efficient and constitutional resolution, particularly for fundamental rights cases  
10 requiring expedited resolution.

11 **IX. MANDATORY LIBERAL CONSTRUCTION STANDARD**

12 **A. Controlling District Court Precedent**

13 *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P (E.D. Cal. Jan. 29, 2025): "The Court  
14 must also construe the alleged facts in the light most favorable to the plaintiff... All  
15 ambiguities or doubts must also be resolved in the plaintiff's favor."

16 **B. Supreme Court and Ninth Circuit Requirements**

17 **Mandatory Standards:**

- 18 • *Haines v. Kerner*, 404 U.S. 519, 520-21 (1972): Pro se complaints held "to less  
19 stringent standards than formal pleadings drafted by lawyers"



- 1 • *Erickson v. Pardus*, 551 U.S. 89, 94 (2007): Pro se pleadings must be "liberally
- 2 construed"
- 3 • *McElyea v. Babbitt*, 833 F.2d 196, 197 (9th Cir. 1987): Courts have "duty to
- 4 ensure that pro se litigants do not lose their right to a hearing on the merits due to
- 5 ignorance of technical procedural requirements"
- 6 • *Johnson v. Reagan*, 524 F.2d 1123, 1124 (9th Cir. 1975): Motions of pro se, IFP
- 7 plaintiffs "should be viewed with special solicitude"

### 8 **C. Constitutional Imperative for Justice**

9 *In re Murchison*, 349 U.S. 133, 136 (1955): Courts must "satisfy the appearance of  
10 justice." This principle requires immediate resolution of systematic constitutional  
11 violations to maintain public confidence in constitutional governance.

## 12 **X. CONSTITUTIONAL IMPERATIVE FOR DISTRICT JUDGE ASSIGNMENT**

### 13 **A. Article VI, Clause 2 Supremacy Requirements**

14 **Constitutional Supremacy:** Under Article VI, Clause 2, constitutional violations require  
15 immediate federal court intervention with full district judge authority. Systematic  
16 exclusion of qualified disabled candidates violates this fundamental principle.

17 **Norton v. Shelby County Doctrine:** Under the established legal principle that  
18 unconstitutional acts are void ab initio, systematic constitutional violations demand  
19 authoritative district judge resolution, not delegated magistrate consideration.

1    **B. 28 U.S.C. § 453 Judicial Oath Obligations**

2    **Binding Constitutional Duty:** All federal judges swear to "administer justice without  
3    respect to persons, and do equal right to the poor and to the rich" under their  
4    constitutional oath.

5    **Mandatory Action Requirement:** Constitutional oath obligations require prompt  
6    adjudication of systematic constitutional violations, particularly those affecting indigent  
7    individuals with disabilities.

8    **C. Judicial Constitutional Obligations**

9    This Court must "satisfy the appearance of justice" under *In re Murchison*, 349 U.S. 133,  
10    136 (1955). The constitutional supremacy requirements of Article VI, Clause 2, judicial  
11    oath obligations under 28 U.S.C. § 453, and mandatory liberal construction standard  
12    create binding judicial obligations that cannot be deferred or avoided.

13    **Ultimate Constitutional Principle:** *Cooper v. Aaron*, 358 U.S. 1, 18 (1958): "No state  
14    legislator or executive or judicial officer can war against the Constitution without  
15    violating his undertaking to support it." This case presents systematic warfare against  
16    constitutional supremacy requiring immediate judicial intervention.

17    **D. Privileges & Immunities - Federal Election Participation Rights**

18    **Fundamental Privilege of National Citizenship:** Federal election participation  
19    represents a core privilege of national citizenship under the Fourteenth Amendment  
20    requiring strict constitutional protection.

- *Saenz v. Roe*, 526 U.S. 489, 502-03 (1999): "The right of the newly arrived citizen to the same privileges and immunities enjoyed by other citizens of the same State" includes equal treatment in fundamental citizenship rights
- *McDonald v. Chicago*, 561 U.S. 742, 813 (2010) (Thomas, J., concurring): Privileges & Immunities Clause protects fundamental rights from government interference
- *Crandall v. Nevada*, 73 U.S. 35, 48 (1868): Citizens cannot be restricted in exercising federal citizenship privileges through discriminatory state barriers

#### **E. Strict Scrutiny - Multiple Fundamental Rights Convergence**

**Mandatory Strict Scrutiny Standard:** When government action burdens multiple fundamental rights simultaneously, strict scrutiny analysis becomes mandatory and virtually insurmountable for defendants.

#### **Converging Fundamental Rights:**

- **First Amendment Political Association:** *Anderson v. Celebrezze*, 460 U.S. 780, 787-88 (1983): Ballot access restrictions require "exacting scrutiny" as they implicate "the right of individuals to associate for the advancement of political beliefs"
- **Fourteenth Amendment Equal Protection:** *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 446 (1985): Heightened scrutiny applies to disability discrimination affecting fundamental rights

- 1 • **Due Process Fundamental Liberty:** *Washington v. Glucksberg*, 521 U.S. 702,  
2 720-21 (1997): Protection for rights "deeply rooted in this Nation's history and  
3 tradition"
- 4 • **Privileges & Immunities Federal Citizenship:** Core privileges of national  
5 citizenship requiring strict protection
- 6 **Strict Scrutiny Requirements:** *Loving v. Virginia*, 388 U.S. 1, 11 (1967): Classifications  
7 affecting fundamental rights "must be justified by a compelling governmental interest and  
8 must be narrowly drawn to express only the essential governmental interests."
- 9 **Burden Impossibility:** When multiple fundamental constitutional rights converge, the  
10 government burden becomes practically insurmountable. *Sherbert v. Verner*, 374 U.S.  
11 398, 403 (1963).

## 12 **F. Criminal Law Violations Requiring Judicial Intervention**

- 13 **Federal Hate Crime Violations - 18 U.S.C. § 245:** Systematic denial of disability  
14 accommodations constitutes federal hate crimes under multiple subsections:
- 15 • **§ 245(b)(1)(A):** Interfering with Plaintiff's ability to "qualify and campaign as a  
16 candidate" for federal office
  - 17 • **§ 245(b)(1)(B):** Interfering with participation in benefits/services "provided or  
18 administered by the United States" (federal elections)
  - 19 • **§ 245(b)(1)(E):** Interfering with participation in "programs receiving Federal  
20 financial assistance" (HAVA-funded elections)

1    **Criminal Civil Rights Violations - 18 U.S.C. §§ 241-242:**

- 2        • **§ 241:** Interstate conspiracy against constitutional rights under *United States v.*  
3        *Guest*, 383 U.S. 745, 760 (1966)
- 4        • **§ 242:** Willful deprivation of constitutional rights under color of law per *Screws v.*  
5        *United States*, 325 U.S. 91, 107 (1945)

6    **Mandatory Criminal Referral Duty - 42 U.S.C. § 1987:** Federal law mandates: "It  
7    shall be the duty of...district attorney...to institute prosecutions against all persons  
8    violating any of the provisions of [civil rights statutes]." *United States v. Hayes*, 589 F.2d  
9    811, 816 (5th Cir. 1979) established this creates non-discretionary enforcement  
10   obligation.

11   **Judicial Duty to Prevent Continuing Crimes:** Courts possess inherent authority and  
12   constitutional obligation to prevent ongoing federal crimes through prompt adjudication.  
13   Magistrate delays enable continuing criminal violations requiring immediate district  
14   judge intervention.

15   **Additional Criminal Violations Requiring Intervention:**

- 16        • **42 U.S.C. § 1986 (Neglect to Prevent):** Imposes liability on officials with  
17        knowledge of civil rights conspiracy who possess power to prevent violations but  
18        neglect to act
- 19        • **18 U.S.C. § 1503 (Obstruction of Justice):** Systematic judicial delays preventing  
20        constitutional adjudication constitute obstruction of due administration of justice

- 1 • **18 U.S.C. § 595 (Election Interference):** Government employees using official
- 2 authority to influence elections through discriminatory practices
- 3 • **18 U.S.C. § 1346 (Honest Services Fraud):** Courts have fiduciary duty to
- 4 provide fair, prompt adjudication; systematic delays breach this duty
- 5 • **18 U.S.C. § 371 (Conspiracy to Defraud):** Coordinated denial of constitutional
- 6 rights across multiple jurisdictions

## 7 **XI. EMERGENCY RELIEF STANDARDS AND WINTER FACTORS**

### 8 **A. Irreparable Harm Per Se**

9 **Constitutional Violations:** *Elrod v. Burns*, 427 U.S. 347, 373 (1976): "The loss of First  
10 Amendment freedoms, for even minimal periods of time, unquestionably constitutes  
11 irreparable injury." Constitutional violations create irreparable harm per se.

12 **Fundamental Rights Deprivation:** *Dombrowski v. Pfister*, 380 U.S. 479, 486 (1965):  
13 Constitutional violations require immediate relief to prevent continuing "irreparable  
14 injury."

15 **Civil Rights Deprivation:** *Chalk v. U.S. District Court*, 840 F.2d 701 (9th Cir. 1988):  
16 "The deprivation of civil rights constitutes irreparable injury as a matter of law."

17 **Time-Sensitive Process Prevention:** *Enyart v. National Conference of Bar Examiners*,  
18 630 F.3d 1153 (9th Cir. 2011): Likelihood of irreparable injury is high when plaintiff  
19 prevented from participating in process that will only happen once.

1    **B. Likelihood of Success on the Merits**

2    Systematic denial of disability accommodations without required individualized analysis  
3    violates clearly established ADA, Section 504, and constitutional requirements.

4    **C. Balance of Equities**

5    *Frontiero v. Richardson*, 411 U.S. 677, 690 (1973): Constitutional violations categorically  
6    outweigh administrative convenience.

7    **D. Public Interest**

8    **Constitutional Enforcement:** *Melendres v. Arpaio*, 695 F.3d 990, 1002 (9th Cir. 2012):

9    "it is always in the public interest to prevent the violation of a party's constitutional  
10    rights."

11    **Preventing Unlawful Action:** *Sierra Club v. Trump*, 929 F.3d 670 (9th Cir. 2019): When

12    plaintiff establishes government action is unlawful, "the public interest is best served by  
13    enforcing the law."

14    **XII. PROMPT ADJUDICATION PRECEDENTS**

15    **A. Election Law Urgency Standard**

16    **Supreme Court Pattern:**

- 17        • *Bush v. Gore*, 531 U.S. 98 (2000): Supreme Court provided expedited review and  
18        resolution within days for election-related constitutional violations

- 1 • *Anderson v. Celebrezze*, 460 U.S. 780 (1983): Court granted immediate relief for
- 2 ballot access constitutional challenges
- 3 • *Williams v. Rhodes*, 393 U.S. 23 (1968): Immediate judicial intervention required
- 4 for discriminatory ballot access requirements
- 5 • *Moore v. Ogilvie*, 394 U.S. 814, 816 (1969): Election cases demand prompt
- 6 resolution under "capable of repetition, yet evading review" doctrine

## 7 **B. Fundamental Rights Timing Requirements**

- 8 • *Elrod v. Burns*, 427 U.S. 347, 373 (1976): "The loss of First Amendment
- 9 freedoms, for even minimal periods of time, unquestionably constitutes
- 10 irreparable injury"
- 11 • *Dombrowski v. Pfister*, 380 U.S. 479, 486 (1965): Constitutional violations require
- 12 immediate relief to prevent continuing "irreparable injury"

## 13 **C. Due Process Timing Framework**

- 14 • *Barker v. Wingo*, 407 U.S. 514, 530 (1972): Constitutional framework establishing
- 15 that indefinite delay violates procedural due process
- 16 • *Mathews v. Eldridge*, 424 U.S. 319, 335 (1976): Due process requires reasonable
- 17 promptness in constitutional adjudication

18 **Pattern of Expedited Constitutional Resolution:** Federal courts consistently treat  
19 constitutional rights cases, especially those involving voting and election access, as  
20 requiring immediate rather than standard civil case timelines.



### **XIII. ANTICIPATED DEFENSES AND DEFINITIVE REBUTTALS**

#### **A. "Magistrate Judge Discretion" Defense**

**Rebuttal:** 28 U.S.C. § 636(b)(1)(A) creates statutory limits on magistrate authority, particularly for injunctive relief and complex constitutional matters. Discretion cannot override statutory limitations or constitutional requirements.

#### **B. "No Specific Timeline" Defense**

**Rebuttal:** Constitutional rights cases, particularly voting-related matters, require expedited adjudication under established Supreme Court precedent detailed in Section XII above.

#### **C. "Case Complexity" Defense**

**Rebuttal:** Case complexity justifies district judge assignment, not indefinite delay. Complex constitutional matters require authoritative resolution, not delegation to magistrates with limited authority.

#### **D. "Administrative Burden" Defense**

**Rebuttal:** *Frontiero v. Richardson*, 411 U.S. 677, 690 (1973): "Administrative convenience" cannot justify infringing fundamental rights. Federal courts routinely handle complex constitutional cases without claiming burden.

1   **XIV. CERTIFICATE OF GOOD FAITH EFFORT**

2   Plaintiff certifies good faith efforts to resolve this matter through:

- 3       1. Multiple attempts to obtain rulings from assigned magistrate judges
- 4       2. Clear communication of constitutional urgency and time-sensitive nature
- 5       3. Escalating requests for emergency relief to demonstrate urgency
- 6       4. Compliance with all procedural requirements known to pro se litigant

7   No conference is required as the issue is purely legal regarding magistrate authority and

8   constitutional obligations.

9   **XV. RELIEF REQUESTED**

10   **WHEREFORE**, Plaintiff respectfully requests this Court:

11   **IMMEDIATE PROCEDURAL RELIEF:**

- 12       1. **GRANT** reconsideration of magistrate judge assignment under Fed. R. Civ. P.
- 13       59(e) and 60(b)(6)
- 14       2. **REASSIGN** this case to a district judge for all further proceedings under 28
- 15       U.S.C. § 636(c) requirements
- 16       3. **VACATE** all referrals to magistrate judges for dispositive matters under Fed. R.
- 17       Civ. P. 72(a)
- 18       4. **ORDER** prompt resolution of all pending motions within constitutional due
- 19       process requirements

1    **CASE MANAGEMENT RELIEF:**

- 2           5. **ESTABLISH** specific timelines: 14 days for emergency relief, 30 days for  
3           summary judgment, 60 days for final resolution
- 4           6. **SCHEDULE** case management conference within 7 days to address procedural  
5           violations
- 6           7. **ENSURE** full ADA Title II and Section 504 compliance in all court proceedings  
7           and communications
- 8           8. **PROVIDE** direct district judge oversight for complex constitutional claims

9    **DISABILITY ACCOMMODATION RELIEF:**

- 10          9. **RECOGNIZE** federal court's ADA Title II obligations under 28 C.F.R. § 35.130
- 11          10.**IMPLEMENT** reasonable modifications in judicial procedures to ensure equal  
12          access
- 13          11.**PROVIDE** effective communication under Section 504 requirements per  
14          *Popovich v. Cuyahoga*
- 15          12.**ELIMINATE** discriminatory delays affecting individuals with disabilities

16   **CONSTITUTIONAL ENFORCEMENT:**

- 17          13.**ACKNOWLEDGE** systematic constitutional violations requiring authoritative  
18          district court resolution
- 19          14.**APPLY** mandatory liberal construction standard for pro se, IFP, disabled plaintiff  
20          under *Dunham v. Mohyuddin*

1       15.**INVOKE** constitutional supremacy under Article VI, Clause 2 and judicial oath  
2       obligations

3       16.**DECLARE** federal election participation constitutes fundamental privilege  
4       requiring strict scrutiny

5       17.**APPLY** strict scrutiny to systematic disability discrimination affecting multiple  
6       fundamental rights

7       **ALTERNATIVE RELIEF:**

8       18.**TRANSFER** case to Sacramento Division under 28 U.S.C. § 1404(a) as  
9       reasonable accommodation

10      19.**APPOINT** counsel under appropriate statutory authority for complex  
11      constitutional claims

12      20.**RETAIN** jurisdiction for ongoing constitutional compliance oversight

13      **ENHANCED ENFORCEMENT (if settlement unsuccessful):**

14      21.**REFER** federal hate crime and civil rights violations for criminal prosecution  
15      under § 1987

16      22.**INVOKE** 42 U.S.C. § 1986 liability for officials neglecting to prevent civil rights  
17      violations

18      23.**IMPOSE** joint and several liability for systematic constitutional violations

19      24.**GRANT** comprehensive damages including civil rights violations and attorney's  
20      fees

1   **CASE MANAGEMENT:**

2       25.**EXPEDITE** all proceedings given continuing constitutional violations

3       26.**GRANT** oral argument on constitutional issues and procedural violations

4       27.**GRANT** such other relief as justice and constitutional supremacy require

5   **CONSTITUTIONAL IMPERATIVE**

6   *In re Murchison*, 349 U.S. 133, 136 (1955): "justice must satisfy the appearance of  
7   justice." Complete judicial inaction in constitutional cases violates this fundamental  
8   principle and undermines public confidence in constitutional governance.

9   Equal participation in federal elections represents a fundamental principle of  
10   constitutional democracy that demands prompt judicial resolution, not indefinite  
11   bureaucratic delay through inappropriate magistrate assignment.

12  
13   **Respectfully submitted,**



**Mathew Tyler**

550 Vallombrosa Ave # 6471

Chico, CA 95927

+1-262-757-8802

1 Psalm\_88-18@FAKEGOV.COM

2 **Plaintiff, *Pro per pro se***

1

**VERIFICATION**

2 I, Mathew Tyler, declare under penalty of perjury under the laws of the United States that

3 the foregoing is true and correct to the best of my knowledge and belief.

4 Executed on 09/04/2025, at Butte County, California.

5

6

7 **MATHEW TYLER**

8 Plaintiff, Pro per pro se

9

**CERTIFICATE OF SERVICE**

10 Plaintiff requests the Court serve this motion upon all Defendants pursuant to 28 U.S.C. §

11 1915(d) and Federal Rule of Civil Procedure 4, as Plaintiff lacks financial resources for

12 service upon multiple defendants across jurisdictions.

13 **MATHEW TYLER**

14 Plaintiff, Pro per pro se

15

1    **APPENDIX A - KEY STATUTORY PROVISIONS**

2    **28 U.S.C. § 636(b)(1)(A):** "A judge may designate a magistrate judge to hear and  
3    determine any pretrial matter pending before the court, **except a motion for injunctive**  
4    **relief.**"

5    **28 U.S.C. § 636(c):** "Upon the consent, in writing, of all parties to a civil action..."

6    **42 U.S.C. § 12132:** "No qualified individual with a disability shall, by reason of such  
7    disability, be excluded from participation in or be denied the benefits of the services,  
8    programs, or activities of a public entity."

9    **28 C.F.R. § 35.130(a):** "No qualified individual with a disability shall, on the basis of  
10    disability, be excluded from participation in or be denied the benefits of the services,  
11    programs, or activities of a public entity."

12    **42 U.S.C. § 1987:** "It shall be the duty of all marshals and deputy marshals to obey and  
13    execute all warrants...and it shall be the duty of the district attorney...to institute  
14    prosecutions against all persons violating any of the provisions of [civil rights statutes]."